

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adam Walsh	Team: Team # 4	CCRB Case #: 201208252	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/27/2012 8:14 PM	Location of Incident: Beach 87 Street and Rockaway Freeway	18 Mo. SOL 12/27/2013	Precinct: 100		
Date/Time CV Reported Wed, 06/27/2012 10:17 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/27/2012 10:17 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Andreno	11542	946748	100 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Andreno	Abuse: PO Joseph Andreno questioned § 87(2)(b) and an individual.	A . Complainant Uncooperative

Case Summary

On June 27, 2012, § 87(2)(b) filed his complaint at the 100th Precinct stationhouse. Sgt. Foley of the 100th Precinct left a message with the CCRB via the Call Processing System with the details of § 87(2)(b)'s complaint.

On June 27, 2012, at approximately 8:14 p.m. § 87(2)(b) was driving with an unidentified friend when they were stopped by an officer in a patrol car near the intersection of Beach 87 Street and Rockaway Freeway, in Queens. PO Joseph Andreno, identified by § 87(2)(b) from the summons that he was issued, asked the unidentified friend if he had ever been arrested "for drugs." § 87(2)(b) did not provide a physical description of PO Andreno in his complaint, § 87(2)(g). The details of § 87(2)(b)'s complaint did not include what the summons was issued for. PO Andreno asked § 87(2)(b) a question about drugs, and § 87(2)(b) replied, "Why, because I'm black and have dreadlocks?" (**Allegation A**) § 87(2)(g)

When PO Andreno returned § 87(2)(b)'s driver's license after writing the summons, PO Andreno spit next to § 87(2)(b)'s car and stared at him. Shortly after this incident § 87(2)(b) went to the 100th Precinct to file his complaint.

§ 87(2)(b) did not provide the CCRB with an official statement, but identified PO Andreno by name and tax ID #946748 from the summons that he was issued. § 87(2)(g) did not indicate that there were any other officers present. The Tour 3 ARCS from the 100th Precinct for June 27, 2012 shows that PO Andreno was on duty, and assigned with 3 other officers as housing officers. § 87(2)(g)

On July 2, 2012, the undersigned investigator sent § 87(2)(b) a Please Call letter, and called § 87(2)(b). § 87(2)(b) answered the phone but stated that he was busy at the moment, and would call back. Between July 13, 2012, and July 30, 2012, the undersigned investigator placed four more phone calls to § 87(2)(b) but never made contact, and was never able to leave a message because no voicemail box was set up. On July 30, 2012, a final Please Call letter was mailed to § 87(2)(b). The letters mailed to § 87(2)(b) were not returned by the USPS. A search of NYC and NYS corrections records show that § 87(2)(b) is not incarcerated. Therefore, it is recommended that **Allegation A** be closed as **Complainant Uncooperative**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

